

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Law and Motion
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, May 18, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-00077	Debt Management Partners, LLC vs. Reynaldo Cardenas
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Motion to Vacate Default Judgment

Defendant's motion to vacate the default judgment entered on November 16, 2022, due to Defendant's lack of actual notice in time to defend the action is DENIED as untimely. Defendant's motion to vacate the default judgment pursuant to Code of Civil Procedure section 473.5 was untimely filed more than two years after the entry of default judgment. (Code Civ. Proc., § 473.5, subd. (a).) The Court also notes that the address where substituted service of the summons and complaint presumably was made in February 2022 matches Defendant's current address and is the same address used for numerous notices mailed to Defendant in this action before and after the date of entry of default judgment.

23CV-02820	LVNV Funding LLC vs Alicia Fulgium
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Claim of Exemption

Appearance required for judgment debtor.

25CV-02150

Navy Federal Credit Union vs. Jonathan P. King Fortmeyer

Motion to Enter Judgment Pursuant to CCP § 664.6

The unopposed motion by plaintiff Navy Federal Credit Union for entry of judgment against defendant Jonathan P. King Fortmeyer pursuant to the terms of the Stipulation and Order re: Settlement, Retention of Jurisdiction, and Dismissal filed on September 17, 2025, is GRANTED. Based on the evidence submitted by the moving party, the Court finds that Defendant did not comply with the terms of the settlement agreement. Dismissal is set aside and Plaintiff shall have judgment in the principal amount of \$9,594.02, plus attorney's fees of \$1,459.40 and \$443.55 in court costs for a total judgment amount of \$11,496.97.

The Court will sign the proposed order and proposed judgment submitted by Plaintiff with the moving papers.

26CV-00184

Taofeek Quadri vs. Vannak Sao

Motion for Temporary Restraining Order

Appearance required. The Court notes that on April 22, 2026, Plaintiff filed a written refusal to stipulate to a court commissioner serving as a temporary judge in this action.

26CV-01342

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
